



Case ref: CASE-20223750

Doc ref: CD/22/59283

19 September 2022

Dr Richard McLean

Via email: richarddrawsstuff@gmail.com

Dear Dr McLean

Your complaint about the Victorian Public Sector

I refer to your complaint, received on 24 June 2022. Thank you for taking the time to contact IBAC.

IBAC's decision regarding your complaint

IBAC has decided not to investigate or refer your complaint to another agency for investigation. IBAC decides to not take further action in relation to a complaint for a number of reasons, which are set out in legislation, specifically section 67 of the *Independent Broad-based Anti-corruption Commission Act 2011* (IBAC Act). In general, IBAC prioritises investigations into allegations of serious or systemic public sector corruption and police misconduct, that appear to have enough evidence to investigate, and which involve matters not previously dealt with by IBAC or another agency.

We appreciate this might not be the outcome you were expecting but we can assure you that IBAC takes all complaints received very seriously and we value the time and effort you have given to bring these matters to our attention. We also note that the information IBAC receives is recorded and will assist IBAC to learn of potential corruption risks, and help target our prevention and education activities.

Decision about whether the complaint is a public interest complaint

IBAC has also assessed whether your complaint is a public interest complaint within the meaning of the *Public Interest Disclosures Act 2012* (PID Act).

In this instance, IBAC has determined that your complaint is not a public interest complaint. This decision was made after consideration of the information provided.

This decision means that the confidentiality provisions under Part 7 of the PID Act do not apply, and that IBAC may provide your identity, or contents of the complaint, to other agencies as appropriate. Although IBAC has determined your complaint is not a public interest complaint, you will still be entitled to the protections under Part 6 of the PID Act. The enclosed fact sheet explains these protections.

Alternative avenues to pursue your complaint about mental health services

Should you wish to raise a complaint about the provision of mental health services in Victoria, you may wish to contact the Mental Health Complaints Commissioner on 1800 246 054 or by visiting their website on: <https://www.mhcc.vic.gov.au/contact-us>

OFFICIAL

If you need support

Sometimes making a complaint can be stressful or difficult for a person. If you are impacted by this complaint, we encourage you to contact your healthcare provider. Alternatively, you may wish to access one of the support services listed on our website: <https://www.ibac.vic.gov.au/reporting-corruption/what-happens-to-your-complaint/mental-health-support>

For more information

If you have any queries, please contact IBAC on 1300 735 135 or info@ibac.vic.gov.au

For more information on our complaints process and the support available, go to www.ibac.vic.gov.au/complaintoutcomes

Yours sincerely



Sue Kapourelakos

Director

Assessment & Review

Enclosed

Part 6 of the Public Interest Disclosure Act 2012

Fact sheet - not a Public Interest Complaint